

Serious Fraud Investigation Office vs. Adarsh COMA No. 05-2019

Present: Shri Lokender Singh Raghav, SCGSC for SFIO

The file is taken up on an application moved under section 299 read with section 317 of Cr.P.C., on behalf of the complainant through SCGSC wherein the request is made to order separate trial of the accused who are yet to be served. At the outset, this court is of the view that the present application under section 299 of Cr.P.C. or under section 317 of Cr.P.C., is not maintainable in the given circumstances wherein the process to procure the presence of the accused named in the application has been issued and there is nothing on record to convince this court that the named accused have absconded or there is no immediate prospect of arresting them. Rather, it appears that the complainant department has adopted this course to avoid their responsibility to ensure arrest of the accused named by putting in sincere efforts in co-ordination with police concerned. Similarly, provisions of Section 317 of Cr.P.C., would also not be attracted in this case because until and unless this court is satisfied to dispense with personal attendance of the accused before the court, such provision would not come into play in the given circumstances where the trial is at a very initial stage of ensuring the presence of the accused after their summoning. Hence, the present application is dismissed being devoid of merit.

Further, it is apt to note here that on the receipt of this case on dated 16.04.2021 through transfer till date unfortunately or inadvertently neither the complainant party nor the staff of this court

indicated that the accused named in the application were summoned for 07.05.2021 and in the absence of such information this court could not issue the process as otherwise desired legally against them on dated 16.04.2021, nor the complainant party let this court know about the report on theailable warrants of the accused named till date. The staff of this court is warned to be careful in future for such laxity. Similarly, the complainant party including the Special Public Prosecutor and others are also directed to be vigilant and be the real assistance to this court to ensure that this matter is decided at the earliest in accordance with laid down procedures. Since, this case is presently fixed for 08.09.2021, and the absence of order of issuance ofailable warrants requires legal rectification, this court direct to issueailable warrants in respect of the accused who were ordered to be summoned throughailable warrants in the sum of Rs. 5000/- each with one surety in the like amount by learned Predecessor of this court on dated 19.02.2021. Death report of accused Mahender Kumar Tak (A-155) and Mahesh Kumar Tak (A-1187) be also called from the concerned SHO for that day.

(Phalit Sharma),
ASJ/Gurugram
UID Code No. HR105

Date of order : 04.08.2021

Neeru: